

The Itki Tuberculosis Sanatorium (Regulation of Buildings) Rules, 1953

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[Rule THE-ITKI-TUBERCULOSIS-SANATORIUM-REGULATION-OF-BUILDINGS-RULES-1953 of 1953](#)

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[The Itki Tuberculosis Sanatorium \(Regulation of Buildings\) Rules, 1953](#)

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[Notification No. 2552. - Medl., dated the 14th February, 1953. - In exercise of the powers conferred by Section 15 of the Itki Tuberculosis Sanatorium \(Regulation of Buildings\) Act, 1951 \(Bihar Act XXIII of 1951\), the Governor of Bihar is pleased to make the following Rules to carry out the purposes of the said Act, namely :-](#)

[1.](#)

[\(i\)](#)

[These Rules may be called "the Itki Tuberculosis Sanatorium \(Regulation of Buildings\) Rules, 1953".](#)

(ii)

They shall come into force at once.

2.

In these Rule -

(a)

"the Act" means the Itki Tuberculosis Sanatorium (Regulation of Buildings) Act, 1951;

(b)

"Section" means a Section of the Act;

(c)

"member" means a member of the Sanatorium Local Authority; and

(d)

all words and expressions used in these Rules and not defined but defined in the Act shall have the same meanings as in the Act.

3.

A meeting of the Sanatorium Local Authority shall be held ordinarily once in every month.

4.

Meetings shall be held at such places and on such dates as the Chairman may from time to time determine.

5.

A member who desires to move a motion shall give notice in writing to the Chairman not later than the eighth day before the date fixed for the meeting at which he desires to move and shall together with the notice send a copy of the motion to the Secretary to the Sanatorium Local Authority.

6.

The Chairman shall decide if the motion is legal and otherwise in order, and if so, direct -

(i)

every such motion received in time for the next meeting to be included in the list of business for the next meeting;

(ii)

every such motion received out of time to be included in the list of business for the next succeeding meeting.

7.

If the Chairman decides that a motion is illegal or otherwise not in order, he shall cause the member who has sent the notice of such motion to be informed accordingly and may suggest to him such alterations in the draft of the motion as shall, in his opinion, render it to be in order.

8.

The Chairman shall send to every member at least seven days' notice of all meetings except an adjourned meeting. The notices shall set forth clearly and fully the business to be transacted at the meetings:

Provided that in case of any sudden emergency, the Chairman shall be competent to call a meeting at a shorter notice.

9.

No business other than that included in the notice for any meeting issued under Rule 8 shall be transacted at such meeting except with the consent of all the members present at such meeting.

10.

Business of meetings shall be conducted in the following order :-

(a)

Questions shall be asked and replies given thereto.

(b)

The minutes of the last meeting, and of any special meeting, held since, shall be read, and if approved as correctly entered, shall be signed by the President of such meeting.

(c)

Business postponed from the last meeting shall be considered.

(d)

A progress report of works shall be laid before the members.

(e)

Motions included in the list of business for the meeting shall be discussed.

11.

In the event of an objection being raised to the form in which any resolution has been recorded, the Chairman shall decide the question after reference to the original draft of the resolution, and if he is satisfied that the minute recorded is inaccurate, he shall make the necessary correction in the minute book.

12.

Votes at meetings shall be given by a show of hands.

13.

It shall be competent to any member to move the adjournment of a meeting.

14.

No business shall be transacted at an adjourned meeting except the business left over at the meeting when it was adjourned.

15.

An adjourned meeting, being a continuation of the original meeting, shall not require any fresh notice.

16.

The quorum for a meeting, except an adjourned meeting, shall be one-half of the total number of members of the Sanatorium Local Authority. If there is not quorum at any such meeting, the meeting shall be adjourned to some further date to be appointed by the Chairman and the business that remains undisposed to shall be postponed to the adjourned meeting.

17.

A copy of the minutes of the proceedings of a meeting may be supplied to any member who may apply for it.

18.

The amount of cost incurred by the Sanatorium Local Authority in carrying into effect at its cost any direction given under sub-section (1) of Section 9 shall be recovered by the Sanatorium Local Authority by the sale of materials on the land or building specified in the notice. The surplus sale proceeds, if any, shall be paid on demand to any person who establishes his right to the satisfaction of the Sanatorium Local Authority or a court of competent jurisdiction.

19.

In case of failure to realise the whole or any part of any amount of cost incurred by the Sanatorium Local Authority under sub-section (2) of Section 9, the Sanatorium Local Authority may sue the person liable to pay the same in a court of competent jurisdiction.

20.

(i)

An appeal filed under Section 10 shall be in form generally followed in preparing a memorandum of appeal filed in the Civil Court and the grounds on which the appeal is based shall be set out clearly and precisely.

(ii)

An appeal under Section 10 shall be filed within 30 days from the date on which the order against which it is filed has been made.

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